

SENATE BILL 547

By Stevens

AN ACT to amend Tennessee Code Annotated, Title 40,
relative to public safety.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 40, Chapter 3, is amended by adding the following new section:

40-3-106.

(a) This section takes effect in any county immediately upon approval by two-thirds (2/3) vote of the county legislative body.

(b) It is the duty of the clerk of every court having jurisdiction of state misdemeanors and felonies to include in every misdemeanor and felony cost bill, a charge of twelve dollars and fifty cents (\$12.50) that must be remitted to the county government, except in counties that are part of a multiple county judicial district as defined in § 16-2-506, in which case this charge must be remitted to the office of the executive director of the district attorneys general conference for the purpose of providing supplemental funding for the office of the district attorney general within that judicial district. Any unencumbered moneys and any unexpended balance of such funds remaining at the end of a fiscal year do not revert to the state general fund but must be carried forward for the purpose for which they were originally intended.

(c) All costs collected by county governments pursuant to this section must be used for providing support services for the purpose of promoting public safety at the sole discretion of the district attorney general for that county's respective judicial district.

(d) A county may supplement the funds of the district attorney general system to promote public safety. The costs collected by the county under this section are supplemental and in addition to any funds received under this chapter or under title 8, chapter 7, relative to district attorneys general.

(e) This section does not apply to nonmoving traffic violations.

(f) In every misdemeanor and felony prosecution in which restitution is ordered or the privilege tax for the criminal injuries compensation fund established by § 40-24-107 is also levied, the cost imposed by this section does not have priority over collection of that restitution or privilege tax.

(g) A district attorney general receiving or directing funding pursuant to this section shall submit a report to the district attorneys general conference no later than January 1 of each year detailing the amount of costs charged and collected and the purposes for which the funds were used in the year immediately preceding such date. The district attorneys general conference shall provide a corresponding report no later than February 15 of each year to the chair of the judiciary committee of the senate, the chair of the criminal justice committee of the house of representatives, and the chairs of the finance, ways and means committees of the senate and the house of representatives, providing such information in aggregate and by district.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.